IN THE PESHAWAR HIGH COURT, PESHAWAR
Present:
* Hon'ble Mr. Justice Shahid Waheed
* Hon'ble Mr. Justice Musarrat Hilali

Crl. Appeal No. 253/2023
Citation: PLD 2023 Lah 275
Matter ID: MAT-CONS-2023-003

BETWEEN:
Oil and Gas Development Company Ltd (OGDCL) ... Appellant / Petitioner
VERSUS
Customs Appellate Tribunal, Karachi ... Respondent

LEGAL TOPIC: Constitutional - Fundamental Rights
STATUTES CITED: Constitution of Pakistan 1973, Art 184(3), Art 199, Art 9, Art 25

JUDGMENT
1. This judgment disposes of Crl. Appeal No. 253/2023, directed against the final judgment rend ered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attor ney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Con stitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied i n Constitution of Pakistan 1973, Art 184(3) were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment , asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on rec ord clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Constitution of Pakistan 1973, Art 184(3) a nd guaranteed fundamental rights, this petition is allowed. The impugned judgment is set aside and matter is remanded for decision afresh on merits.

Decided on: 15 October 2023.